

added)], 25, 32-36, 40-43 [Plaintiff's presentation of vehicle for repair on multiple occasions and defect not fixed], 47-61 [TSBs and NHTSA complaints].)

While Plaintiffs may not ultimately be able to prove these allegations by clear and convincing evidence as Civil Code section 3294 requires, they allege sufficient facts to support a claim for punitive damages for purposes of a motion to strike. GM does not cite any authority that precludes Plaintiffs from asserting claims for both punitive damages and the Song-Beverly Act civil penalties at the pleading stage. (*See Clauson v. Superior Court, supra*, 67 Cal.App.4th at 1256.)

Conclusion and Ruling

In the Court's discretion, the motion to strike is therefore **denied**.

18. 9:00 AM CASE NUMBER: C25-02571

CASE NAME: FAN PEI KOUNG VS. JOSIANE PEREIRA

HEARING IN RE: APPLICATION TO VACATE PRELIMINARY INJUNCTION (SET PER ORDER FILED 2/4/2026)

FILED BY:

TENTATIVE RULING:

The Parties are ordered to appear remotely via zoom. Both parties are self-represented and the Court is not convinced that proper notices have been provided for the hearing on Respondent Josiane Pereira's Application to Vacate Preliminary Injunction. The Court also issues an order to show cause as to why venue is proper in Contra Costa County. The parties do not live in the State of California.

19. 9:00 AM CASE NUMBER: MSC21-01391

CASE NAME: JFP-AG/SAN RAMON VS RM 15 SAFE CORP

HEARING ON SUMMARY MOTION JUDGMENT FILED BY PLAINTIFFS

FILED BY: JFP-AG/SAN RAMON LLC A DELAWARE LIMITED LIABILITY COMPANY

TENTATIVE RULING:

Before the Court is Plaintiff JFP-AG/San Ramon, LLC, Plaintiff JFP-AG/Batesville, LLC, Plaintiff JFP-AG/Little Rock, LLC, Plaintiff JFP-AG/Springerville, LLC, Plaintiff JFP-AG/Tuscon, LLC, Plaintiff JFP-AG/Roswell, LLC, Plaintiff JFP-AG/Ruidoso, LLC, Plaintiff JFP-AG/Longview, LLC, and Plaintiff JFP-AG/Carthage, LLC (collectively, "Plaintiffs")'s motion for summary judgment, or in the alternative, summary adjudication. The Motion is opposed by Defendant RM Safe 15 Corp. and Defendant San Ramon Hannibal, LLC (collectively, "Defendants"). The Motion relates to Plaintiffs' Verified Amended Complaint ("VAC") for (1) declaratory relief, (2) reformation of contract (for mistake, fraud and inequitable conduct), and (3) reformation of contract (for failure of consideration).

As a threshold issue, Defendants argue that Plaintiffs Motion is untimely.

A motion for summary judgment must be "heard no later than 30 days before the date of trial." (CCP § 437c(a)(3).) Furthermore, notice of the motion must be "served on all other parties to the action at least 81 days before the time appointed for the hearing," with additional time if the motion is served other than by personal delivery. (CCP § 437c(a)(2).) Thirty days before the April 13, 2026 court trial is Saturday March 14th, and the next court day is Monday March 16th. Department 16's regular law and motion date is Wednesday and the hearing date immediately before the summary judgment hearing

cutoff is March 11, 2026.

Even assuming arguendo that the Court had for good cause ordered the motion heard less than 30 days before the date of trial, and the Plaintiffs were able to secure their originally requested hearing date of March 16, 2026 Plaintiffs were also required under subsection (a)(2) to serve notice of the motion at least 81 days before the hearing date. Even if Plaintiffs had personally served their motion the same day they filed it (December 31, 2025), there are only 75 days between March 16, 2025 and December 31, 2025. Since 2024 the summary judgment statute has required service 81 days before the time appointed for hearing. Therefore, the motion was untimely per statute at the outset.

“Because it is potentially case dispositive and usually requires considerable time and effort to prepare, a summary judgment motion is perhaps the most important pretrial motion in a civil case. Therefore, the Legislature was entitled to conclude that parties should be afforded a minimum notice period for the hearing of summary judgment motions so that they have sufficient time to assemble the relevant evidence and prepare an adequate opposition.” (*McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 117-18.) In “light of the express statutory language, trial courts do not have authority to shorten the minimum notice period for summary judgment hearings.” (*Id.* at 118.)

Any argument that Defendant waived the required notice by filing a substantive response to the MSJ are without merit. While cases have found such a waiver in the context of other motions, courts have generally found that in the context of an MSJ, waiver of the minimum notice “should only be based on the affirmative assent of the affected parties.” (*Urshan v. Musicians’ Credit Union* (2004) 120 Cal.App.4th 758, 768.) “In sum, the statutory language and existing case law lead [] to the conclusion a trial court does not have authority to shorten the minimum notice period for summary judgment hearings absent the express consent of the parties.” (*Ibid.*)

Here, Defendants objection to Plaintiffs’ untimeliness suggests lack of consent on their part. The Plaintiffs’ motion for summary judgment is denied.

20. 9:00 AM CASE NUMBER: MSC21-01391
CASE NAME: JFP-AG/SAN RAMON VS RM 15 SAFE CORP
HEARING ON SUMMARY MOTION CONTD FROM 3/4/26 TO BE HEARD W/PLTFS MOTION FOR SJ
ON 3/18/26
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant RM Safe 15 Corp. (“RM 15”) and Defendant San Ramon Hannibal, LLC (“Hannibal”) (collectively, “Defendants”) Motion for Summary Judgment or in the alternative, Summary Adjudication. The Motion relates to Plaintiff JFP-AG/San Ramon, LLC, Plaintiff JFP-AG/Batesville, LLC, Plaintiff JFP-AG/Little Rock, LLC, Plaintiff JFP-AG/Springerville, LLC, Plaintiff JFP-AG/Tuscon, LLC, Plaintiff JFP-AG/Roswell, LLC, Plaintiff JFP-AG/Ruidoso, LLC, Plaintiff JFP-AG/Longview, LLC, and Plaintiff JFP-AG/Carthage, LLC (collectively, “Plaintiffs”)’s Verified Amended Complaint (“VAC”) for declaratory relief and contract reformation.

As a threshold issue, the Court notes that Defendants’ separate statement fails to comply with California Rules of Court, Rule 3.1350.

On a motion for summary adjudication, the separate statement must tie each “undisputed material fact” to the particular claim, defense or issue sought to be adjudicated. (Cal. Rules of Ct, Rule